BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

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NORTH DISTRICT OF CALIFORNIA
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,

Defendant.

Case No. 4:26-cv-05953-ASK
Action Filed: June 17, 2026

PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO DISMISS FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT

Date: September 16, 2026
Time: 1:30 p.m.
Judge: Mag. Ajay S. Krishnan

Hearing Date: September 16, 2026, at 1:30 p.m., before Magistrate Judge Ajay S. Krishnan, United States District Court for the Northern District of California.

I. INTRODUCTION

This Court has already screened Plaintiff's complaint under 28 U.S.C. § 1915 and held it sufficient. Accepting the pleaded facts as true, the Court found "plausible inferences that CHP officers falsely imprisoned [Plaintiff] in November 2024 based on fabricated evidence" and that "Defendant Serrato retaliated against him by wrongfully denying his certification request." (Dkt. No. 5 at 4.) Critically, the Court also held: "While Defendant Serrato had discretion to certify the request, he did not have discretion to retaliate against Mr. Newanforbi." (Id.) Plaintiff accepts